

UNITED STATES INTERNATIONAL TRADE COMMISSION

Washington, D.C.

In the Matter of

**CERTAIN TRANSFORMERS AND
COMPONENTS THEREOF**

Inv. No. 337-TA-1517

**ORDER NO. 5: (1) INITIAL DETERMINATION SETTING AN 18-MONTH
 TARGET DATE**

(2) ORDER SETTING PRELIMINARY CONFERENCE

(September 3, 2026)

On August 19, 2026, the notice of institution of investigation was published in the *Federal Register*. 91 Fed. Reg. 53,631.

I. TARGET DATE

Pursuant to Order No. 3, the parties¹ submitted a joint statement regarding the target date. The parties jointly propose a 16-month target date.

A 16-month target date would result in a final initial determination deadline of August 19, 2027. I currently have initial determinations due on August 6, 2027, September 13, 2027, and September 30, 2027. Setting an 18-month target date will provide me with adequate time to draft the initial determination for this investigation, while also attending to my responsibilities in other investigations.

Accordingly, any final initial determination shall be due no later than October 19, 2027. *See* 19 C.F.R. § 210.42(a)(1)(i).

¹ The parties consist of: (1) Complainant Ayr Energy, Inc.; (2) Respondents Zetwerk Manufacturing Business Private Limited, Zetwerk Manufacturing USA Inc., KRYFS Power Components Ltd., and Unimacts Global, LLC; and (3) the Commission Investigative Staff.

II. PRELIMINARY CONFERENCE

Consistent with Ground Rule 3, a preliminary conference will be convened September 16, 2026, at 1:00 p.m. Eastern Time via videoconference. Videoconference connection information will be sent to the parties in a separate communication.

The parties shall prepare and submit a proposed procedural schedule as required by Ground Rules 3 and 4. In preparing this schedule, the parties should use the events and deadlines set forth in Exhibit A, as opposed to the events and deadlines set forth in Ground Rule 4. Additionally, the parties shall take the following dates into account:

Event	Date
Preliminary Conference	September 16, 2026, at 1:00 p.m.
Prehearing Conference	June 21, 2027, at 9:00 a.m.
Evidentiary Hearing	June 21-25, 2027
Final initial determination on violation	October 19, 2027
Target date for completion of investigation (18-month target date)	February 21, 2028 ²

Pursuant to 19 C.F.R. § 210.43(h), this Initial Determination shall become the determination of the Commission unless a party files a petition for review of the Initial Determination pursuant to 19 C.F.R. § 210.43(a), or the Commission, pursuant to 19 C.F.R. § 210.44, orders, on its own motion, a review of the Initial Determination or certain issues herein.

SO ORDERED.


Bryan F. Moore
Administrative Law Judge

² February 19, 2028 is a Saturday.

EXHIBIT A

Preliminary conference
File identification of expert witnesses, including their expertise and curriculum vitae
Complainant files list of products it plans to rely upon to satisfy the domestic industry requirement, where applicable
<i>Deadline for responses to contention interrogatories on issues for which the responding party bears the burden of proof, and on public interest (if applicable)</i>
File initial disclosure of asserted trade secrets and proprietary information with reasonable particularity ¹
<i>Deadline for responses to contention interrogatories on issues for which the responding party does not bear the burden of proof</i>
File final disclosure of asserted trade secrets and proprietary information with reasonable particularity ²
Deadline for parties to file positions on numerical limits, if any, on asserted trade secrets (parties to meet and confer at least 5 business days in advance)
<i>Fact Discovery cutoff and completion</i>

¹ Consistent with the best practices identified in the Federal Judicial Center’s Trade Secret Case Management Guide, the identification of trade secrets shall be formatted as a numbered list, with each number constituting a separate trade secret alleged to have been misappropriated. *See* Federal Judicial Center’s Trade Secret Case Management Guide at § 4.4.2, *available at* <https://www.fjc.gov/content/379485/trade-secret-case-management-judicial-guide> (last accessed May 7, 2026). The identification should be sufficient to “(1) put a [respondent] on notice of the nature of the [complainant’s] claims and (2) allow the [respondent] to discern the relevancy of any requested discovery to its trade secrets.” *Id.* at § 4.5 (citing cases). If the asserted trade secrets are compilations or combinations, the particular combination of components, steps, or information should be specified, including the identification of any components, steps, or information that are not asserted to be part of the trade secret. *Id.* at § 4.4.4 (citing cases). The use of “and/or” in defining combination or compilation trade secrets, to indicate that some unspecified subset of the identified combination may be a trade secret, should be avoided. The citation to documents is encouraged, but citation to a document(s) or file(s) does not relieve Complainant of the obligation to provide a reasonably particular narrative identification of each asserted trade secret.

² Amendment to the initial identification of trade secrets shall only be made upon agreement of the parties or by a filing a motion for leave and demonstrating good cause. If the parties agree to amend the identification of trade secrets, they do not need to file a motion.

Deadline to submit letters regarding fact discovery disputes
File joint statement identifying accused products
<i>Exchange initial expert reports</i>
File tentative list of witnesses a party will call to testify at the hearing, with an identification of each witness' relationship to the party
<i>Exchange rebuttal expert reports</i>
<i>Expert discovery cutoff and completion</i>
Deadline to submit letters regarding expert discovery disputes
Motions to Strike (see Ground Rule 9.1)
One-day mediation session
Submit joint report on mediation
Deadline for filing summary determination motion
<i>Exchange of exhibit lists among the parties</i>
<i>Complainant and respondent serve proposed direct exhibits (including witness statements) and identify physical exhibits</i>
<i>Commission Investigative Attorney serves proposed direct exhibits (including witness statements) and identifies physical exhibits</i>
File joint stipulation regarding representative accused products and representative domestic industry products, where applicable
<i>Serve proposed rebuttal exhibits (including witness statements) and identify rebuttal physical exhibits</i>
Complainant and respondent file pre-hearing statements and briefs
<i>Exchange objections to witness statements</i>
File joint list of unopposed exhibits

Deadline for motions <i>in limine</i> and high priority objections statement
File requests for receipt of evidence without a sponsoring witness
Commission Investigative Attorney files pre-hearing statement and brief
Submit witness statements (and exhibits cited therein) to Box
Deadline for responses to motions <i>in limine</i> and high priority objections statement ³
File responses to requests for receipt of evidence without a sponsoring witness
Final pre-hearing conference
Hearing
File final exhibit list
Complainant and respondent file post-hearing initial briefs with the Secretary and submit final exhibits with the Administrative Law Judge
Commission Investigative Attorney files post-hearing initial brief
Complainant and respondent file post-hearing responsive briefs
Commission Investigative Attorney files post-hearing responsive brief
Initial Determination due
Target date for completion of investigation

³ Responses to motions *in limine* and high priority objections must be submitted no later than ten days prior to the pre-hearing conference. If this deadline falls on a Friday, responses must be filed by noon.